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Case Number: 22TRCV00362 Hearing Date: September 4, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

CATHERINE M. HERRERA

;

Plaintiff,

vs.

DARLENE AGARWALA

, et al.;

Defendants.

Case

No.:

22TRCV00362

Hearing

Date:

September
4, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANTS

AND CROSS-COMPLAINANTS AGARWALAS' MOTION FOR A NEW TRIAL

MOVING PARTY: Defendants

and Cross-Complainants, Pronita Ann Agarwala, as trustee of the 2010 Darlene Agarwala Revocable Trust Dated 26, 2010 and 2010 Agarwala-Mollner Revocable Trust; Sabina Agarwala Miro, as trustee of the 2010 Darlene Agarwala Revocable Trust Dated 26, 2010 and the Miro Family Trust Dated 8/7/21; and Stephen Miro, as Trustee of the Miro Family Trust Dated 8/27/21

RESPONDING PARTY: Plaintiffs and Cross-Defendants, Paul

Herrera as 2nd successor trustee to Amended and Restatement of the Jan Kumar Agarwala Separate Property Trust dated September 13, 2021; and Catherine M. Herrera as Guardian ad Litem for Minor Cross-Defendants Lauren Agarwala and James Agarwala

(1)

Defendants

and Cross-Complainants Agarwalas' Motion for a New Trial is DENIED pursuant to Code of Civil Procedure section 657.

The Court considers the moving

papers filed on July 10 and 20, 2026, and the opposition brief filed on July 29, 2026. To date, no reply brief has been filed.

BACKGROUND

Factual Background

On May 10, 2022, plaintiff Catherine

M. Herrera, as successor trustee to the Amended and Restatement of the Jan Kamar Agarwala Separate Property Trust dated September 13, 2021, filed the Complaint against defendants Darlene Agarwala, Pronita Agarwala, Gregory Mollner, Sabina Agarwala Miro, Stephen Miro, Christopher Miro, the 2010 Darlene Agarwala Revocable Trust dated 26, 2010 ("Darlene Trust"), 2010 Agarwala-Mollner Revocable Trust Mollner ("Agarwala-Mollner Trust"), Miro Family Trust dated 8/7/21, All Persons Claiming an Interest in the Real Properties Described in the Complaint Adverse to Plaintiff's Title or Any Cloud on Plaintiff's Title Thereto, and DOES 1 through 100.

On December 1, 2022, Catherine

M. Herrera filed the Ex Parte Application for: 1. Substitution of Paul Herrera, in His Capacity as Successor Trustee of the Amended and Restatement of the Jan Kumar Agarwala Separate Property Trust Dated September 13, 2021 in the Place and Stead of Plaintiff Catherine M. Herrera in this Action; and 2. Resignation of Successor Trustee Catherine M. Herrera and Appointment of Paul Herrera as Successor Trustee Under that Certain Amended and Restatement of the Jan Kumar Agarwala Separate Property Trust Dated September 13, 2010.

On December 2, 2022, Catherine

M. Herrera filed the First Amended Complaint against defendants Darlene Agarwala, Pronita Agarwala, Gregory Mollner, Sabina Agarwala Miro, Stephen Miro, the 2010 Darlene Agarwala Revocable Trust dated 26, 2010 ("Darlene Trust"), 2010 Agarwala-Mollner Revocable Trust Mollner ("Agarwala-Mollner Trust"), Miro Family Trust dated 8/7/21, All Persons Claiming an Interest in the Real Properties Described in the Complaint Adverse to Plaintiff's Title or Any Cloud on Plaintiff's Title Thereto, and DOES 1 through 100

On December 5, 2022, the Court

granted the ex parte application from December 1, 2022, adding Paul Herrera as a plaintiff.

On January 2, 2024, Catherine

M. Herrera filed the Second Amended Complaint ("SAC") against the same defendants. The SAC includes the following causes of action: (1) Partition of that Certain Real Property Commonly Known as 5021 W. 129th Street, Hawthorne, CA 90250 APN: 4144-002-023;

(2) Partition of that Certain Real Property Commonly Known as 521 1/2 S. Oak Street, Inglewood, California 90301 APN: 4018-025-003; (3) Unjust Enrichment/Restitution; (4) Conversion; and (5) Common Counts/Money Had and Received.

On April 20, 2023, cross-complainants Pronita Agarwala and Sabina Agarwala Miro, as trustees of the 2010 Darlene Agarwala Revocable Trust, Pronita Agarwala and Gregory Mollner, as trustees of 2010 Agarwala-Mollner Revocable Trust, and Stephen Miro and Sabina Miro, as trustees of the Miro Family Trust dated 8/7/21 (collectively, "Cross-Complainants") filed the Cross-Complaint against cross-defendants Catherine M. Herrera, as first successor trustee of the Jan Kamar Agarwala Separate Property Trust dated September 13, 2010, Paul Herrera, as second successor trustee of the Jan Kamar Agarwala Separate Property Trust dated September 13, 2010, Lauren Kaelin Agarwala, James Henry Agarwala, All Persons Unknown, Claiming Any Legal or Equitable Right, Title, Estate, Lien, or Interest in the Property Described in the Cross-Complaint Adverse to Cross-Complainants' Title, Or Any Cloud Upon Cross-Complainants' Title Thereto (the "Adverse Interests"), and ROES 1 through 100.

On April 24, 2023, Catherine M. Herrera filed the Ex Parte Application for Appointment of Catherine M. Herrera as Guardian Ad Litem for Minor Cross-Defendants Lauren Kaelin Agarwala and James Henry Agarwala. On April 27, 2023, the Court granted the ex parte application.

On December 31, 2024, Cross-Complainants dismissed Lauren Kaelin Agarwala and James Henry Agarwala without prejudice.

On December 31, 2024, Plaintiffs dismissed Darlene Agarwala, Pronita Agarwala, Gregory Mollner, Sabina Agarwala Miro, Stephen Miro, and Gregory Mollner as individual defendants from the SAC without prejudice.

On January 23, 2025, Cross-Complainants dismissed the first cause of action from the Cross-Complaint without prejudice.

On April 4, 2025, Paul Herrera dismissed the third, fourth, and fifth causes of action from the SAC without

prejudice.

On November 14, 2025, Cross-Complainants filed the First Amended Cross-Complaint ("FAXC") against the same cross-defendants. The FAXC includes the following causes of action: (1) [Reserved]; (2) Quiet Title; (3) Declaratory Relief; (4) Breach of Oral Agreement; (5) Partition of Real Property (Oak Street); and (6) Partition of Real Property (129th Street).

On April 7 to 11, May 7, 8, 12, 27, and 28, August 11, and November 17 to 19, 2025, the Court held the non-jury trial. On February 17, 2026, the Court took the non-jury trial under submission. On March 13, 2026, the Court issued its Tentative Statement of Decision on Trial and Tentative Interlocutory Judgment on Partition by Sale and Determination of Interests. On April 27, 2026, the Court issued its Statement of Decision.

On June 29, 2026, the Court entered Interlocutory Judgment of Partition by Sale and Determination of Interests. On the same day, the Court provided notice of this judgment.

On August 27, 2026, defendants and cross-complainants Pronita Ann Agarwala, as trustee of the 2010 Darlene Agarwala Revocable Trust Dated 26, 2010 and 2010 Agarwala-Mollner Revocable Trust; Sabina Agarwala Miro, as trustee of the 2010 Darlene Agarwala Revocable Trust Dated 26, 2010 and the Miro Family Trust Dated 8/7/21; and Stephen Miro, as Trustee of the Miro Family Trust Dated 8/27/21 (collectively, "Defendants") filed the Notice of Appeal.

Procedural Background

On July 10, 2026, Defendants filed their Notice of Intention to Move for New Trial and Request for Hearing. On July 20, 2026, Defendants filed their Memorandum of Points and Authorities in Support of Motion for New Trial. On July 29, 2026, plaintiffs and cross-defendants Paul Herrera as 2nd successor trustee to Amended and Restatement of the Jan Kumar Agarwala Separate Property Trust dated September 13, 2021; and Catherine M. Herrera as Guardian ad Litem for Minor Cross-Defendants Lauren Agarwala and James Agarwala (collectively,

“Plaintiffs”) filed their opposition brief.

To date, no reply brief has been filed.

LEGAL STANDARD

“A motion for new trial is a creature of statute[.]” (Neal v. Montgomery Elevator Co., (1992)

7 Cal.App.4th 1194, 1198.) A movant must

satisfy Code of Civil Procedure sections 657 and 659. Under Code of Civil Procedure section 657, a motion for a new trial may be granted if any of the following apply:

[¶] 1. Irregularity in the proceedings of the court, jury, or adverse

party, or any order of the court or abuse of discretion by which either party was prevented from having a fair trial. [¶]

2. Misconduct of the jury; and whenever any one or more of the jurors have been

induced to assent to any general or special verdict, or to a finding on any question submitted to them by the court, by a resort to the determination of chance, such misconduct may be proved by the affidavit of any one of the jurors. [¶] 3. Accident or surprise,

which ordinary prudence could not have guarded against. [¶] 4. Newly discovered evidence, material for the party making the application, which he could not, with reasonable

diligence, have discovered and produced at the trial. [¶] 5. Excessive or inadequate damages. [¶] 6. Insufficiency of the evidence to

justify the verdict or other decision, or the verdict or other decision is

against law. [¶] 7. Error in law,

occurring at the trial and excepted to by the party making the application.

When ruling on an application for a new trial, the court sits as an independent trier of fact. (Lane v.

Hughes Aircraft Co. (2000) 22 Cal.4th 405, 412.) The court, therefore, has broad discretion to order new trials, limited only by the obligation to state its reasons for granting a new trial and the existence of substantial evidence in the record to support those reasons. (Ibid.) In assessing the need for a new trial, the court must rely on its view of the overall record, taking into account such factors, among others, as the nature and seriousness of the alleged misconduct, the general atmosphere, including the judge’s control, of the trial, the likelihood of prejudicing the jury, and the efficacy of objection or admonition under all the circumstances. (Dominguez v. Pantalone (1989) 212 Cal.App.3d 201, 211.)

“[T]he function of a new trial motion is to allow a reexamination of

an issue of fact,” and unlike a judgment notwithstanding the verdict, “granting a new trial does not entail a victory for one side or the other. It simply means the reenactment of a process which may eventually yield a winner.” (Fountain Valley Chateau Blanc Homeowner’s Assn. v. Department of Veterans Affairs (1998) 67 Cal.App.4th 743, 751 (Fountain Valley).) As a result, a trial judge has “much wider latitude” in deciding a new trial motion than in a judgment notwithstanding the verdict. (Ibid.)

Additionally, unlike a dispositive judgment notwithstanding the verdict motion, “a new trial motion may itself be based on insufficient evidence to support a favorable judgment.” (Fountain Valley, supra, 67 Cal.App.4th at p. 751, citing Code Civ. Proc., § 657(6).) “When a trial judge grants a motion for new trial based on insufficiency of the evidence, it is not because the judge has concluded that the [non-moving party] must lose, but only because the evidence in the trial that actually took place did not justify the verdict.” (Id. at p. 752.) “Evidence might exist to justify the verdict, but for some reason did not get admitted[.] ... There is still the real possibility that the [non-moving party] has a meritorious case.” (Ibid.)

DISCUSSION

Defendants move for a new trial, asserting that there were “excessive or inadequate damages, the evidence was insufficient to justify the decision, the decision was against the law, and there was an error in law.” (Motion, p. 3:21-24.) The Court disagrees.

Credit Award to Jan’s Trust of \$130,000.00

Defendants maintain “[t]hat \$130,000.00 [credit] to Jan’s Trust is wholly unsupported by the evidence, is patently contrary to the law, and results in excess damages being awarded to Jan’s Trust and inadequate damages being recovered by Jan’s co-tenants.” (Motion, p. 7:19-21.) The Court disagrees.

Defendants appear to be rearguing a point the Court has already rejected. As Plaintiffs explain, “Defendants argue Jan still fell short of a \$366,667.44 ‘fair share,’ so the \$130,000 cannot be an ‘excess’ contribution. But the Court found the parties fixed their interests by recorded deed and mutual intent, assigning 48% to Jan, and

rejected Defendants' attempt to recompute ownership by capital contribution." (Opp., p. 6:24-27.) Thus, the alleged shortfall is irrelevant and

does not factor into the Court's decision regarding credits among the parties, nor does it result in excessive damages being awarded to Jan's Trust at the expense of Defendants.

Furthermore, the Court's

decision is firmly rooted in law and evidence.

Sufficient evidence was presented, including testimony from Catherine Herrera, Sabina Agarwala-Miro, and documents showing a wire transfer, indicating that Jan paid \$130,000.00 into Darlene Agarwala's account on August

9, 2019, to finance the acquisition of the 129th Street property. (Statement of Decision, pp. 13:23-14:7.) The Court determined that this amount

exceeded Jan's proportional share, considering that Darlene Agarwala, Jan Agarwala, and Pronita Agarwala each contributed \$154,241.54 for a total of \$462,724.63 to help purchase the 129th Street Property. (Statement of Decision, pp. 12:27-13:1.)

The Court then found that any

amount paid that exceeded the \$154,241.54 threshold would qualify for credits pursuant to Willmon v. Koyer (1914) 168 Cal. 369 and Demetris v. Demetris

(1954) 125 Cal.App.2d 440, 444-445. (Statement

of Decision, pp. 13:15-19, 14:7-9.) Consequently,

Darlene Agarwala was awarded \$301,165.00 in credits for her contributions beyond \$154,241.54, while the estate of Jan Kumar Agarwala was awarded \$130,000.00 in credits for the same reason. Notably,

Defendants do not contest the \$301,165.00 awarded for similar reasons.

Reimbursement Award to Jan's Trust of
\$10,000.00

Defendants claim that the Court

should not have reimbursed Jan's Trust for the \$10,000 paid by Jan Agarwala to Pronita Agarwala and that the Court should have awarded Pronita Agarwala \$39,500, which they allege she utilized to replace the roof and perform repairs on the property located on 129th Street.

(Motion, pp. 8:23-9:15.)

Defendants maintain that "the uncontroverted trial evidence was that, by family agreement, Jan Agarwala was obligated to pay his proportionate share of property expenses and that Darlene Agarwala and Pronita Agarwala needed to be reimbursed for their advances of those expenses" and "[t]he uncontroverted

evidence at trial was also that, from her personal funds, Pronita Agarwala advanced the sum of \$39,500.00 to replace the roof and make other repairs to the 129th Street Property." (Motion, p. 9:18-20, 23-25.) The Court disagrees.

As discussed more fully below, the Court found that Defendants' supporting evidence lacked credibility. It determined that Pronita Agarwala should not be reimbursed, as she did not present supporting evidence to substantiate her claim regarding the use of the funds.

In contrast, Catherine M. Herrera "did provide the source document (See P Ex # 11) that verifies the \$10,000 out of pocket expense Jan Agarwala made in good faith towards the roof for the 129th Street Property to enhance its value which was corroborated by Mrs. Sabina Argwala- Miro's testimony." (Motion, p. 14:12-15.) Thus, the Court did not err in its decision regarding the award.

Out-of-Pocket Expenses

Defendants maintain that the Court erred in its refusal to reimburse out-of-pocket expenses although "the categories of expenditure documented in Defendants' Profit and Loss Statements (Trial Exhibits 19–25 and 28–37) and out-of-pocket expense compilation (Trial Exhibit 27), [were] corroborated by source documents independently admitted as Plaintiff's Trial Exhibits 46, 49, 50, and 53."

(Motion, p. 10:10-13.) Furthermore,

Defendants claim that the Court "categorically disregarded the entirety of Defendants' Profit and Loss Statements (Exhibits 19–25 and 28–37) and Exhibit 27 on the stated basis that no 'objective, concrete, specific... source documents' existed to verify them[.]" despite the inclusion of "Exhibits 46, 49, 50, and 53 [as] such source documents." (Motion, pp. 10:26-11:2.) Consequently, Defendants argue that the Court's

decision was reached without sufficient evidence, which they assert constitutes a legal error resulting in insufficient damages awarded to them and excessive damages awarded to Plaintiffs. (Motion, p. 12:1-13.) The Court disagrees.

The Court clarifies that it did not disregard any of the evidence that was admitted. Rather, the Court determined that the corroborating evidence was neither credible nor supportive of Defendants' claims. As the Court explained, "No objective, concrete, specific (date, work description, dollar amounts paid),

source documents to verify the existence, accuracy, and/or validity of the underlying financial transactions evidence was provided during the trial.” (Statement of Decision, p. 15:20-22.) Thus, after a thorough review of the documents, the Court concluded that they did not substantiate Defendants' claims for reimbursement.

Moreover, the Court found that

the testimony provided by Sabina Agarwala-Miro did not enhance the credibility of the associated documents. Sabina Agarwala-Miro:

(1) “conceded that the profit-and-loss statements and spreadsheets on which the Defendants relied upon were assembled and revised during litigation, including during trial[;]” (2) “[a]dmitted that multiple versions were created and updated as the case progressed, testifying that spreadsheets were produced shortly before trial, revised during trial, and revised again near the close of trial[;]” (3) “displayed uncertainty as to whether her numbers were correct, testifying: ‘I would say the profit-and-loss statement is more correct[;]’ ”

(4) “conceded that the final spreadsheet — the one on which defendants’ offset calculations depend — is not accurate[;]” and (5) failed to identify any “business records” that would support the profit-and-loss statements and

spreadsheets. (Statement of Decision, pp. 15:23-16:8.) Consequently, the Court concluded that “[g]iven that the defendants’ numbers cannot be traced, tested, or verified, they failed to carry their burden. As such, the Agarwala family is not entitled to credits/offsets within the meaning of Mercola, Millian, Wallace, Southern Adjustment Bureau, and Hunter.” (Statement of Decision, p. 16:8-11.)

As

the trier of fact in this matter, the Court is not obligated to find the admitted exhibits or the testimony of Sabina Agarwala-Miro to be credible or substantiating Defendants’ claims. (See *Foreman & Clark Corp. v. Fallon* (1971) 479 P.2d 362, 890 [“As a general rule, ‘[p]rovided the trier of fact does not act arbitrarily, he may reject in toto the testimony of a witness, even though the witness is uncontradicted. [Citations.]’ ”].)

Denial of Prejudgment Interest

Defendants assert their

entitlement to prejudgment interest, arguing that they have fulfilled the two

prongs set forth in Civil Code section 3287, subdivision (a). (Motion, pp. 12:16-13:14.) Defendants contend that the Court found they

did not satisfy the second prong due to the absence of a written agreement outlining

the terms. (Motion, p. 13:16-25.) Consequently, Defendants interpret the Court's position as implying that a written document is necessary. (Motion, p. 13:16-21.) However, since a written agreement is not a requirement, they argue that the denial of prejudgment interest "is contrary to law within the meaning of Code of Civil Procedure section 657, subdivisions (6) and (7)." (Motion, p. 13:18-25.) The Court disagrees, finding that Defendants misunderstand its reasoning.

"A person who is entitled to recover damages [(1)] certain, or capable of being made certain by calculation, and [(2)] the right to recover which is vested in the person upon a particular day, is entitled also to recover interest thereon from that day, except when the debtor is prevented by law, or by the act of the creditor from paying the debt." (Civ. Code, § 3287, subd. (a).)

Regarding the second prong, the Court stated: "[T]he record is silent regarding evidence to satisfy the second prong. Notwithstanding it was 'the Agarwala children/siblings understanding that they would repay their mother', there is no written agreement outlining the terms: lender, borrowers, repayment terms, or demand establishing a fixed obligation on a date certain' to satisfy the second prong. ¶ On the contrary, Mrs. Sabina Agarwala-Miro conceded that only Mrs. Darlene Agarwala was financially responsible for repaying the HELOC loan, and that neither Pronita Agarwala nor Jan Agarwala repaid their mother or made payments towards the HELOC loan. (See TT May 27, 2025, at pages 63:28;64; and 65:1-8). As such, the request for prejudgment interest is denied. The Agarwala family has failed to meet its burden." (Statement of Decision, pp. 16:26-17:7.)

Thus, while the absence of a written agreement was one piece of evidence the Court considered in its decision, it was not the reason the Court found the second criterion unsatisfied. Rather, the Court found insufficient evidence that the right vested on any specific date. Moreover, the Court uncovered evidence to the contrary, as demonstrated by Sabina Agarwala-Miro's concession.

Reimbursement of Expenses

Defendants argue that the judgment

fails to address the advancement of expenses related to the two subject properties from the date of trial through the closing of escrow or clarify whether the party who incurs those costs will be entitled to reimbursement. (Motion, p. 14:3-6.) Consequently, Defendants assert that the judgment "is contrary to the law and awards inadequate damages to the co-tenant(s) who advances the expenses and effectively awards excessive damages to the co-tenant(s) who do not advance expenses and/or who do not even pay their proportional share of the expenses."

(Motion, p. 14:6-10.)

Additionally, Defendants believe that "by neglecting to provide for reimbursement to co-tenants who advance expenses from trial through sale, the Judgment fails to comply with the law providing for reimbursement to co-tenants who advance expenses, and is contrary to the uncontradicted trial evidence that each co[-]tenant was supposed to pay their proportionate share of expenses." (Motion, p. 14:10-13.) The Court disagrees.

The Court has already addressed this issue. In its judgment, the Court ordered: "All costs of sale (including, but limited to, referee fees, sales commissions, title insurance premiums, escrow fees, notarization fees, recording fees), all costs of preparing the properties for sale (including cleaning costs, repairs, painting, etc.), and all other debits to the gross sale proceeds such as property taxes and transfer taxes, shall be paid by the owners of such property in proportion to their deeded percentages of ownership."

(Interlocutory Judgment, p. 6:1-5.)

Accordingly, those who advance and prove costs shall be entitled to reimbursement for any amounts they have contributed that exceed their deeded percentage of ownership.

Moreover, "[t]he Court reserves continuing jurisdiction over this action until the partition sales of both Properties are complete, the proceeds are distributed in accordance with this Judgment, the Referee's final accounting is approved, and the Referee is discharged." (Interlocutory Judgment, p. 10:15-17.) As such, any requests for reimbursement fall within the Court's jurisdiction, allowing the Court to resolve these issues as they arise.

Fourth Cause of Action

Defendants contend that the

Court's failure to adjudicate their fourth cause of action for breach of oral agreement "constitutes a decision against law and an irregularity in the proceedings within the meaning of CCP § 667, (1) and (7)" and "effectively results in an award of inadequate and excessive damages." (Motion, p. 14:22-24.) The Court disagrees.

Initially, the Court emphasizes that Code of Civil Procedure section 667 does not possess any subdivisions, nor does it address decisions against the law or irregularities in legal proceedings. In the event that Defendants are referencing Code of Civil Procedure section 657, the Court observes that Defendants fail to cite any statute or case law that necessitates a ruling on this particular cause of action. The Court has explicitly stated that "this [] Statement of Decision addresses only the fifth and sixth causes of action which were the basis of the Court Trial." (Statement of Decision, p. 3:15-17.) The fourth cause of action was not considered as a basis for the non-jury trial, and it remains unclear why the Court should grant a new trial concerning a cause of action that was not relevant to the trial proceedings.

Attorney's Fees and Costs

Defendants claim that "the denial of attorney's fees as costs of partition under Code of Civil Procedure Section 874.010(a) is unsupported and is contrary to law, as well as results in the award of inadequate damages." (Motion, p. 14:26-28.) The Court disagrees.

"The costs of partition include: ¶ (a) Reasonable attorney's fees incurred or paid by a party for the common benefit." (Code Civ. Proc., § 874.010, subd. (a).)

"In a partition action, a court can only award those costs and fees incurred for the common benefit of the parties. What constitutes 'for the common benefit' is to be determined based on the facts and circumstances of each particular case. Typically reviewing courts have not found the fees and costs incurred in adjudicating contentious issues between parties to a partition to be 'for the common

benefit.' In some instances, the reviewing court has inquired into whose interests were being protected by the services provided, whether the services contributed anything of benefit to the cotenants, or whether one party's counsel's services made the proceedings any more advantageous to the other party." (Finney v. Gomez (2003) 111 Cal.App.4th 527, 548-549.)

"From these authorities it is evident that the 'common benefit' in a partition action is the proper distribution of the respective shares and interests in said property by the ultimate judgment of the court. [Citation.] This sometimes will require that controversies be litigated to correctly determine those shares and interests [citation], but this ultimately can be for the common benefit as well. The fact that a party resists the partition does not change this. [Citations.]" (Orien v. Lutz (2017) 16 Cal.App.5th 967, 967-968, internal citations and quotations omitted (Orien).)

"Sections 874.010 and 874.040 provide numerous avenues for trial courts to adjust the allocation of costs if, for example, fees are incurred for purposes that unduly exacerbate the dispute or do not provide a common benefit to all parties. For instance, under section 874.010 a court may find that fees incurred advocat[ing] a position of limited merit are not for the common benefit and should be borne by the party pressing such spurious matters. [Citation.] Or, a court may achieve a similar result through an exercise of its equitable discretion under section 874.040 and require a party to bear its own fees. [Citation.]" (Orien, supra, 16 Cal.App.5th at p. 968, internal citations and quotations omitted.)

Defendants specifically assert that "Section III, paragraph 11(d) of the Judgment denies the entirety of Defendants' fee request without apportioning between fee categories or making the fact-specific common-benefit findings Finney and Orien require. A categorical denial that does not distinguish common-benefit fees from fees properly borne individually is unsupported by the evidence and contrary to law under Code of Civil Procedure section 657, subdivisions (6) and (7)." (Motion, p. 15:12-17.)

The Court observes that

Defendants appear to overlook significant language on page 18 of the Statement of Decision. The Court determined that “[b]ased upon the evidence, Defendants’ legal efforts were overwhelmingly adversarial, and outcome driven. They sought reformation of unambiguous recorded deeds, retroactive reallocation of ownership interests, imposition of disputed reimbursement obligations with statutory interest, and adoption of litigation created accounting theories. None of that work facilitated partition for the common benefit. It was undertaken to defeat the enforcement of unequivocal legal instruments — Recorded Grant Deeds — for both properties, and the estate of Jan Agarwala’s valid ownership interests in those properties. Pursuant to Orien, fees incurred advocating such positions are not incurred for the common benefit and are properly borne by the party who chose to press them. Orien at 968.” (Statement of Decision, p. 18:1-9.) Moreover, the Court relied on Defendants’ own arguments to conclude that “[t]he Defendants concedes this point in their brief. They contend that their legal work was necessary to vindicate their ownership, loan, and offset theories. That concession places their fees squarely outside section 874.010.” (Statement of Decision, p. 18:10-12.)

Consequently, the Court did indeed make a “fact-specific common-benefit finding,” rather than a categorical denial. The Court is not required to provide an explanation as to why each of Defendants’ claimed fees was or was not in the parties’ common interest, nor have Defendants presented any supporting case law or statute to justify such a requirement.

No Prevailing Party

Defendants argue that the “Darelene Trust” should be identified as the prevailing party, as “this Court awarded Darlene reimbursement of her excess contributions toward the acquisitions of the properties of \$93,499.77 and \$301,165.00, respectively, totaling \$394,664.77.” (Motion, p. 15:3-6.) The Court disagrees.

“ ‘Prevailing party’ includes the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary

relief and in situations other than as specified, the 'prevailing party' shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034." (Code Civ. Proc., § 1032, subd. (a)(4), emphasis added.)

The Court distributed: (1) "[F]or the Oak Street Property only, the credit of \$93,499.77 to PRONITA ANN AGARWALA and SABINA AGARWALA MIRO, as trustees of The 2010 Darlene Agarwala Revocable Trust, dated July 26, 2010;" and (2) "[F]or the 129th Street Property only, the credits of \$301,165.00 to PRONITA ANN AGARWALA and SABINA AGARWALA MIRO, as trustees of The 2010 Darlene Agarwala Revocable Trust, dated July 26, 2010[.]" (Interlocutory Judgment, p. 8:23-28.) Consequently, the Court distributed credits. As indicated by Plaintiffs, "[t]he credits the Court awarded are equitable accounting adjustments distributed off the top of sale proceeds," rather than a net monetary recovery. (Opp., p. 12:22-24.) Accordingly, the Court correctly refrained from designating the Darelene Trust as the prevailing party.

Exclusion of Evidence

Defendants maintain that "the Court excluded from evidence Defendants' Exhibit 39, 40, 41, 42, 43, 44, 45, 46, 47, and 48, those being Defendants' Profit and Loss Statements." (Motion, p. 16:13-14.) They contend that this exclusion resulted in the Court not considering "expenses incurred for the benefit of the properties and advanced by one or more cotenants ..., resulting in the award of inadequate damages." (Motion, p. 16:17-19.)

However, the Court finds that Defendants do not substantiate their claim regarding the exclusion of these exhibits. They fail to reference any trial transcripts, affidavits, or other evidence to support their assertion that the Court excluded these items from consideration.

Moreover, the Court did evaluate Defendants' Profit and Loss Statements/Spreadsheets, as noted on pages 15 and 16 of the Statement of Decision. The Court found these documents to be not credible or capable of verification, noting that "[n]o objective, concrete, specific (date, work description, dollar amounts paid), source documents to verify the existence, accuracy, and/or validity of the underlying financial

transactions evidence was provided during the trial." (Motion, p. 15:20-22.)

To the extent that any additional exhibits were excluded, Defendants reference Vanguard Recording Society, Inc. v. Fantasy Records, Inc. (1972) 24 Cal.App.3d 410, 418-419, to argue that "summaries of business records and the testimony of those who supervised the preparation of the summaries are admissible." (Motion, pp. 16:22-17:1.) The Court concurs with this statement; however, the party offering the summary must demonstrate that the underlying business records are entitled to admission into evidence.

"[A] summary of business records consisting of numerous accounts or other writings that cannot be examined in court without great loss of time, is admissible in evidence upon a showing that the actual business records are entitled to admission in evidence; but the court, in its discretion, may require the actual business records to be produced for inspection by the adverse party. [Citation.] A person who directs or supervises the preparation of a summary may testify to its contents, and the summary may be received in evidence. [Citation.]" (Vanguard Recording Society, Inc. v. Fantasy Records, Inc. (1972) 24 Cal.App.3d 410, 418-419, internal citations omitted.)

Consequently, Defendants' contested Profit and Loss Statements/Spreadsheets would only be admissible if they could demonstrate that the actual business records are eligible for admission as evidence. Defendants do not make this showing in their motion, and given the Court's earlier finding that "[n]o objective, concrete, specific (date, work description, dollar amounts paid), source documents to verify the existence, accuracy, and/or validity of the underlying financial transactions evidence was provided during the trial[.]" it is likely that the exclusion of these exhibits, if it occurred, stemmed from Defendants' inability to substantiate the admissibility of the underlying documents. (Motion, p. 15:20-22.)

Referee and Interest-Bearing Account

Defendants assert that the judgment fails to follow the law and results in inadequate damages for the parties involved, as the referee is excused from placing the sale proceeds into

an interest-bearing account. (Motion, p. 17:5-13.) The Court disagrees.

Defendants claim that the referee is required to use an interest-bearing account due to a fiduciary duty, which obliges the referee "not to commit waste with the assets entrusted to him – which also means to maximize return on the money." (Motion, p. 8-10.) However, Defendants fail to provide relevant statutes or supporting case law that clarify the fiduciary responsibilities of a referee, including whether such duties necessitate maximizing the returns on the sale proceeds by placing them in a designated type of account.

As such, Defendants have failed to establish grounds for a new trial. Accordingly, their Motion for New Trial is DENIED.

ORDERS

1) Defendants and Cross-Complainants Agarwalas' Motion for a New Trial is DENIED.

2) Defendants are ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: September 4, 2026

Tamara
Hall

Judge
of the Superior Court